

25NNCV01541 25NNCV01541

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 25NNCV01541 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 7

Date: August 7, 2026

Case No: 25NNCV01541 Trial Date: June 1, 2027

Case Name: Woodall v. American Honda Motor Co, et al.

MOTION TO COMPEL PMK DEPOSITION

[CCP § 2025.450 subd. (a)]

Moving Party: Plaintiff, Delta D. Woodall

Responding Party: Defendant, American Honda Motor Co., Inc.

RELIEF REQUESTED:

Compel the deposition of Defendant's PMK and production of documents.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act – Breach of Express Warranty

2) Violation of Song-Beverly Act – Breach of Implied Warranty

3) Violation of the Song-Beverly Act Section 1793.2

CHRONOLOGY:

Notice of Deposition Served: May 19, 2025 / March 24, 2026

Date of Deposition [10-day lapse]: June 2, 2025 / April 7, 2026

Motion Served: April 6, 2026

SUMMARY OF FACTS:

This case is a lemon-law action. Delta D. Woodall ("Plaintiff") allege that on May 27, 2023, Plaintiff purchased a 2023 Honda CR-V, for which American Honda Motor Co., Inc. ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP, § 2025.450 subd. (a).)

On May 19, 2025, Plaintiff noticed the deposition of Defendant's PMK for June 2, 2025. (Gideon Decl., Ex. A.) On May 28, 2025, Defendant timely served objections to the deposition notice. (Gideon Decl., Ex. B.) On August 15, 2025, Plaintiff served an amended notice of deposition of Defendant's PMK for August 29, 2025, accompanied by a meet and confer letter stating, "In the event that this date is not available for the PMK deposition to occur, please provide us with alternative dates before/along with your objections, for the deposition of AHM's PMK to occur." (Gideon Decl., Exs. D-E.) On August 22, 2025, Defendant timely served objections to the deposition notice and stated, "Counsel is invited to contact counsel for AHM, at the phone number provided above, to coordinate the rescheduling of this deposition." (Gideon Decl., Ex. F.) This pattern continued with three subsequent deposition notices and objections. (Gideon Decl., Exs. G-M.) It does not appear that either party actually made any effort to discuss or propose alternative deposition dates.

In the opposition, Defendant asserts that it has offered April 14, 2027, as a date for the deposition of its PMK. (Gideon Decl., Ex. N.) The Court notes that trial in this action is currently set for June 1, 2027. Defendant's offer of a deposition date nearly two years after the deposition was first noticed, and for a date approximately six weeks before trial, is not reasonable.

The motion is GRANTED.

RULING:

Plaintiff's Motion to Compel Deposition of Defendant's PMK is GRANTED. The Court orders that the deposition take place within 45 days of this order, no later than September 21, 2026.

The deposition categories, and documents requests, must comport with this Court's Standing Order Re Discovery in Song-Beverly Litigation. The Order is posted and available on the Los Angeles Superior Court website in connection with this Department, Glendale Courthouse, Department D.

Counsel for moving party is ordered to prepare a proposed order and submit it on eCourt by noon today in accordance with this ruling.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.